

FEDERAL SYSTEM

FEDERAL DEFINITION → UNION BIAS → LEGISLATIVE DISTRIBUTION → STATE-LIST EXCEPTIONS → BASIC-STRUCTURE CASES → SHARED RULE AND ASYMMETRY → FISCAL FEDERALISM → CURRENT FRICTION → ANSWER SYNTHESIS

Read the thick cyan rail from Stage 00 to the final core synthesis. The grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00

FEDERALISM: AUTONOMY WITHIN A UNION OF STATES

ARTICLE 1UNION OF STATESDUAL POLITYDIVISION OF POWERSCONSTITUTIONAL SUPREMACYINDEPENDENT JUDICIARYHOLDING TOGETHER

DEFINITION

- Constitution divides authority between Union and States.
- Each operates directly in assigned fields.
- Independent courts police the boundary.

INDIAN FORMATION

- Article 1 says Union of States.
- The Union is not a secession-permitting compact.
- Holding-together design gives the Union greater strength.

FEDERAL FEATURES

- Dual polity, written supreme Constitution and divided powers.
- Rigidity for federal provisions.
- Bicameral representation and independent judiciary.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Federal government constitutionally divides public power between a general government and regional governments so that each operates directly on citizens within an assigned sphere.

01

STAGE 01

UNION BIAS WITHOUT UNITARY ABSORPTION

UNION LISTRESIDUARY POWEREMERGENCYGOVERNORALL-INDIA SERVICESINTEGRATED JUDICIARYRAJYA SABHABASIC STRUCTURE

CENTRALISING DESIGN

- Broad Union fields and residuary power.
- Exceptional Parliament access to State subjects.
- Emergency, Governors and All-India Services.

INTEGRATING INSTITUTIONS

- Single citizenship and integrated judiciary.
- Election and audit architecture.
- Flexible State reorganisation.

FEDERAL CHECKS

- State List and elected State governments.
- Rajya Sabha, ratification and judicial review.
- Finance and intergovernmental bargaining; federalism as Basic Structure.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: India's centralising features remain constitutional and reviewable, so they modify rather than extinguish federalism.

02

STAGE 02

LEGISLATIVE DISTRIBUTION AND CONFLICT DOCTRINES

ARTICLES 245-246UNION 100STATE 61CONCURRENT 52ARTICLE 246AARTICLE 248ARTICLE 254PITH AND SUBSTANCE

List	Standard count	Primary power
Union	100	Parliament
State	61	States, subject to exceptions
Concurrent	52	both levels

LIST ARCHITECTURE

- Article 245 controls territorial reach.
- Article 246 orders Union, Concurrent and State fields.
- Standard exam counts: 100, 61 and 52.

SPECIAL POWERS

- Article 246A creates GST competence.
- Article 248 and Union List Entry 97 vest residuary power in Parliament.
- Article 254 addresses Concurrent repugnancy.

INTERPRETIVE CONTROL

- Pith and substance identifies true nature.
- Territorial nexus requires real connection.
- Harmonious construction preserves fields; repugnancy resolves final conflict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 248 and Union List Entry 97 place residuary legislative power with Parliament, including residuary taxation subject to later GST design.

03

STAGE 03

PARLIAMENT ON THE STATE LIST: EXCEPTION ROUTES

ARTICLE 249RAJYA SABHAARTICLE 250ARTICLE 252STATE REQUESTARTICLE 253ARTICLE 356ARTICLE 246(4)

Identify trigger

Identify initiating institution

Define scope and duration

State amendment or repeal control

NATIONAL TRIGGERS

- Article 249: Rajya Sabha national-interest resolution.
- Article 250: National Emergency.
- Article 253: treaty implementation.

STATE / TERRITORIAL TRIGGERS

- Article 252: two or more States request Parliament.
- Other States may adopt later; Parliament amends or repeals.
- Article 246(4): non-State territories.

CRISIS TRIGGER / LIMIT

- Article 356 enables Parliament for the affected State.
- Each route has a distinct trigger and duration.
- Exceptional access does not permanently erase List II.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 253 is powerful but remains subject to constitutional rights, judicial review and the actual treaty-implementation nexus.

04

STAGE 04

FEDERALISM AS BASIC STRUCTURE AND CASE CONTROL

KESAVANANDA BHARATI (1973)S.R. BOMMAI (1994)FLOOR TESTARTICLE 356MOHIT MINERALS (2022)GST COUNCILLEGISLATIVE AUTONOMY

Kesavananda Bharati (1973) identity

S.R. Bommai (1994) Article 356 control

Mohit Minerals (2022) cooperative autonomy

IDENTITY

- Kesavananda Bharati (1973) places federal character in the identity framework.
- Union strength cannot erase State constitutional status.
- Federalism limits constitutional amendment and power use.

ARTICLE 356

- S.R. Bommai (1994) constrains partisan central intervention.
- Disputed majority ordinarily goes to the floor.
- Presidential action remains judicially reviewable.

GST FEDERALISM

- Mohit Minerals (2022) treats GST Council recommendations as recommendatory.
- Consultation and pooled sovereignty matter.
- Union and State legislative autonomy remain constitutionally relevant.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The basic-structure cases transformed federalism from a descriptive feature into an enforceable limit on Union power, especially against partisan displacement of State governments.

05

STAGE 05

COOPERATION, COMPETITION, BARGAINING AND ASYMMETRY

COOPERATIVECOMPETITIVEBARGAININGCONFRONTATIONALRAJYA SABHAINTER-STATE COUNCILASYMMETRYLOCAL GOVERNMENT

Mode	Benefit	Risk
cooperation	coordination	Union leverage
competition	innovation	capacity gaps
bargaining	accommodation	opacity
confrontation	rights assertion	paralysis

OPERATING MODES

- Cooperation coordinates interdependence.
- Competition spreads innovation but may widen capacity gaps.
- Bargaining accommodates interests; confrontation channels disputes.

SHARED RULE

- Rajya Sabha, Inter-State Council and Zonal Councils.
- GST Council, Finance Commission and courts.
- All-India Services and dispute mechanisms.

ASYMMETRY / DEPTH

- Special arrangements need constitutional source and purpose.
- Local government deepens participation.
- Local bodies are not a co-equal third sovereign tier.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The health test is whether institutions convert confrontation into reasons, negotiation, adjudication and electoral accountability.

06

STAGE 06

FISCAL FEDERALISM: CAPACITY, EQUALISATION AND GST

FINANCE COMMISSION41 PERCENTDIVISIBLE POOLHORIZONTAL DEVOLUTIONGST COUNCILCESSES AND SURCHARGESVERTICAL IMBALANCE

Expenditure assignments

Revenue powers

Finance Commission transfers

GST coordination

Accountability and dispute

REVENUE / EXPENDITURE GAP

- States carry major service-delivery responsibilities.
- Union controls important elastic revenues.
- Transfers mediate vertical imbalance.

TRANSFER ARCHITECTURE

- Finance Commission recommends devolution and grants.
- The 2026-31 award retains 41% vertical share.
- Horizontal criteria balance equity, need and performance.

GST AND FRICTION

- GST pools Union-State tax sovereignty.
- Council recommendations are not binding.
- Cesses, scheme conditions and rate autonomy generate contestation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Transfers are therefore not charity; they are a structural feature of the constitutional division of revenue and responsibility.

07

STAGE 07

REPRESENTATION, GOVERNORS, CBI AND CURRENT FRICTION

RAJYA SABHADELIMITATION131ST BILLGOVERNOR ASSENTNO DEEMED ASSENTCBI CONSENTARTICLE 131CONSULTATION

REPRESENTATION

- Rajya Sabha carries State voice with unequal representation.
- Delimitation changes popular and federal weight.
- The defeated 850-seat proposal is not law.

GOVERNOR ASSENT

- No fixed judicial timeline or deemed assent under current advisory control.
- Prolonged unexplained inaction may attract a direction to act.
- Court cannot dictate the ultimate constitutional choice.

CBI AND DISPUTE

- Section 6 consent protects police autonomy.
- Constitutional courts may order CBI investigation.
- The 2024 West Bengal ruling decided maintainability, not all merits.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Population control creates a federal fairness dilemma: equal vote value points toward updated population, while rewarding demographic performance points toward protecting relative representation of lower-growth States.

08

STAGE 08

FINAL SYNTHESIS: TRAPS, PYQS AND ANSWER SPINE

UNION OF STATES100-61-52RESIDUARY POWERARTICLE 254S.R. BOMMAI (1994)SHARED RULEFISCAL FEDERALISMAINS SPINE

PRELIMS CONTROL

- Union of States does not make States departments.
- Residuary power is parliamentary; Article 254 is Concurrent-specific.
- GST Council is recommendatory; local bodies are not co-equal sovereigns.

PYQ ROUTES

- 2020, 2021 and 2022 GS-II questions.
- 2021 and 2023 Prelims questions.
- Objective keys remain inferred where official keys are absent.

MAINS LADDER

- Define holding-together federalism.
- Map federal and centralising features.
- Explain distribution, institutions and fiscal capacity.
- Use cases and current friction; propose cooperative reform.

MECHANISM / VERDICT — Move from constitutional design to operating relations, fiscal capacity, cases, current friction and a balanced Union-capacity plus State-autonomy verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: "Not binding" does not mean irrelevant; departure can create political, administrative and market costs.

E

EXTRA

OPTIONAL ENRICHMENT: FEDERAL CLASSIFICATIONS AND SCHOLARS

OPTIONAL ONLYQUASI-FEDERALBARGAINING FEDERALISMCOERCIVE FEDERALISMMARBLE CAKEASYMMETRY

ENRICHMENT

- Scholar labels describe different operating moments.
- Bargaining and marble-cake images illuminate interdependence.

USE WITH DISCIPLINE

- No label replaces constitutional provisions.
- Quasi-federal is not constitutional text.
- Add only after the complete core answer.

OPTIONAL STATUS — This enrichment is unnecessary for a competent core answer and remains subordinate to Articles, Lists, institutions, cases, fiscal facts and PYQs.